

TERMS AND CONDITIONS

1. Acceptance

This document and all documents referred to herein are our terms and conditions for use of the www.buyvi.ca website. This document and the other documents that we reference below are our terms of use (the “Terms”). The Terms are a contract between you, whether you are a natural person or an incorporated entity (“you” or “your”) and BuyVi.ca (“BuyVi”, “we,” “us” or “our”), or between you and BuyVi’s operating company that does business as BuyVi, McGillivray Promotions Inc.; in either case referred to herein as “BuyVi”. The Terms describe your rights and responsibilities when you access and/or use the BuyVi.ca website as well as any other media form, media channel, mobile website, or mobile application related, linked, or otherwise connected thereto (collectively, the “Site”), and the other services provided by BuyVi (the “Services”).

You agree that by accessing and/or using the Site, and/or if you use our Services, you are agreeing to be bound by the Terms. If you do not agree with all of the Terms, then you are expressly prohibited from using the Site and you must discontinue use immediately.

2. Use of the Website and Services

You may not access or use the Site for any purpose other than that for which we make the Site available.

In order to access and/or use the Site and/or Services, you must:

- a) create an account;
- b) be over the age of majority in your province or jurisdiction;
- c) provide accurate, current, and complete information;
- d) not infringe on anyone’s confidential information;
- e) comply with all applicable laws;

- f) if you are creating an account in the name of a business or company, you agree that you have authority to act for that business or company;
- g) pay all amounts due to BuyVi or the vendors on our website or to buyers on our website, as required by these Terms or by law;
- h) refrain from any harassment, discrimination, illegal activities, misrepresentation, and fraud;
- i) not interfere with, disrupt, or create an undue burden on the Site or the networks or services connected to the Site;
- j) not decipher, decompile, disassemble, or reverse engineer any of the software comprising or in any way making up a part of the Site;
- k) not attempt to bypass any measures of the Site designed to prevent or restrict access to the Site, or any portion of the Site;
- l) not copy or adapt the Site's software, including but not limited to Flash, PHP, HTML, JavaScript, or other code; and
- m) refrain from disparaging, tarnishing, or otherwise harming, in our opinion, us and/or the Site.

Your right to use the Services is non-transferrable and may be revoked by us at any time for non-compliance with the Terms, as determined in our discretion

If you are a vendor, see these vendor-specific terms of use.

If you are a buyer, see these buyer-specific terms of use.

3. No Joint venture

Your use of BuyVi does not create a joint venture, partnership, employment or any similar arrangement between yourself, your company or business, and BuyVi.

4. Privacy

Any information you provide to BuyVi in setting up your account is provided to BuyVi and is subject to our privacy policy

Any personal information you provide to vendors on the BuyVi website is personal information provided to them and is therefore subject to the privacy policies of the vendors and the vendors are, therefore, responsible for maintaining and protecting such personal information.

In the alternative, if BuyVi and the vendors are found to be joint data receivers / controllers of buyers' personal information, and if BuyVi is sued, fined, or otherwise incurs expenses because of something that a vendor did as a joint data controller of buyer personal information, the vendor agrees to indemnify BuyVi for any expenses (including but not limited to legal fees) it occurs in connection with your processing or improper use or disclosure of buyer personal information.

5. Intellectual Property rights

Unless indicated otherwise, all content included in or made available through any BuyVi service, such as source code, databases, functionality, software, website designs, text, graphics, logos, button icons, images, audio clips, digital downloads, data compilations, and software (the "Content"), and the trademarks, service marks, and logos contained therein (the "Marks"), are the property of BuyVi or its content suppliers and protected under the copyright and trademark laws of Canada, foreign jurisdictions, and international conventions.

Our Content and the Marks are provided on the Site "AS IS" for your information and personal use only. Except as expressly provided in these Terms, no part of the Site or Our Content or Marks may be copied, reproduced, aggregated, republished, uploaded, posted, publicly displayed, encoded, translated, transmitted, distributed, sold, licensed, or otherwise exploited for any commercial purpose whatsoever, without our express prior written permission.

6. User Generated Contributions

Anything you post on our website, including photos, text, names, videos, and logos (the "Contributions") remains your Contributions and not that of BuyVi or the Site. We do not assert any ownership over your Contributions. You retain full ownership of all of your

Contributions and any intellectual property rights or other proprietary rights associated with your Contributions. You are responsible for your Contributions, including ensuring that your Contributions do not infringe upon the rights of any third party, including but not limited to intellectual property rights. By posting your Contributions to any part of the Site [or making Contributions accessible to the Site by linking your account from the Site to your website or any of your social networking accounts] you grant BuyVi a non-exclusive, unrestricted, perpetual, worldwide, irrevocable, royalty-free right and license to host, use, distribute, share, modify, publish, archive, reformat, translate, transmit, copy, reproduce, and store those Contributions. You agree not to assert any moral rights against us for using your Contributions

If photos, text, names, videos, logos, or other Contributions that you own have been used in the Services or posted to the Site without your permission and you want it removed, please contact us. If your Contributions are alleged to have infringed another person's intellectual property, we will investigate and take action that we deem necessary in the circumstances, which may include removal of the Contributions or termination of the account of a user of the Services.

Contributions shall not be or contain any of the following:

- a) abusive, defamatory, or harassing language or images;
- b) obscene, vulgar, lewd, violent, libelous, slanderous, lascivious, or filthy language or images;
- c) in violation of a third party's privacy or intellectual property rights;
- d) in violation of the Terms as herein stated;
- e) in violation of any applicable law, regulation, or rule; or
- f) false, inaccurate, deceptive, or misleading.

You are solely responsible for your Contributions to the Site and you expressly agree to exonerate us from any and all responsibility and to refrain from any legal action against us regarding your Contributions. We have no obligation to monitor your Contributions.

7. Termination

You can terminate your account with BuyVi at any time.

If you are a vendor, your termination is subject to:

- a) you paying to us any monies owing to us;
- b) your fulfillment of any orders outstanding to buyers on our website; and
- c) your payment of any monies owing to buyers on our website (for example, refunds).

If you are a buyer, your termination is subject to your payment of any monies owing to vendors.

If your account is terminated for any reason, we reserve the right to continue to use your Content provided to us prior to termination for the purposes of marketing, promotion, and operation of BuyVi and the Services

If we terminate your account, we will notify you of the same, but you have no right to a set amount of notice and we may terminate your accounts at any time in our discretion. We have no obligation to provide you with access to or continued use of the Services. If you are a vendor, you will not be entitled to a refund of any pre-paid package paid to us prior to termination.

BuyVi reserves the right to change, suspend, or discontinue all or any of the Services at any time, for any reason, including those laid out in BuyVi's policies under these Terms. We shall not be liable to you for the effect that any changes to the Services or the Terms may have on you, including your income or your ability to generate revenue through the Services. You are obligated to review these Terms as posted to the BuyVi website and as may be amended from time to time to determine if they have been updated or altered.

Even after your account is terminated or after you cease using the Services, the Terms remain in full force and effect.

8. Suspension

We reserve the right to suspend your access to the Service for any reason at any time in at our discretion if we believe you have violated any of these Terms. At the end of our investigation into the underlying event that lead to the suspension, we will advise you if we will reinstate or terminate your access to the Services.

9. Limitation of Liability

BuyVi does not manufacture, warrant as to fitness for use, guarantee, store, test, ship, or inspect any of the items sold through our Services. We only provide the website wherein the independent vendors sell their items to third party buyers. As such, any claim you may have about the item you purchase will be against the vendor and not BuyVi. We provide the venue; the items in our marketplaces are produced, listed, sold, and shipped directly by independent vendors. You release BuyVi from any claims related to items sold through our Services, including but not limited to defective items, misrepresentations by vendors, items that did not arrive when shipped, items that were not shipped, or items that caused physical injury. Without limiting the generality of the foregoing, with respect to the actions of the vendors in using the Services and the items sold by the vendors on BuyVi, BuyVi expressly disclaims any warranties of title, noninfringement, merchantability, fitness for purpose, and compliance with applicable legislation

BuyVi makes no representations about any Contributions posted by users through the Services. We are not liable for any statements or representations in your Contributions provided by you in any area on the Site. BuyVi is not responsible for the accuracy, intellectual property compliance, legality, or decency of Contributions posted by users that you accessed through the Services. You release us from all liability relating to those Contributions. We also do not screen the users of the Services for their good character. You release us from all liability relating to the character or actions of any user of the Services.

Where BuyVi contains links to third party services and websites, we make no warranties or representations as to the safety, legitimacy, or use of such services and websites. Any terms of service you enter into with that third party is between you and the third party and not BuyVi.

10. Guidelines for Reviews

There are areas provided for you on the Site to leave reviews or ratings. When posting a review, you must comply with the following criteria:

- a) you should have firsthand experience with the person/entity/product/service being reviewed;
- b) your reviews should not contain offensive profanity, or abusive, racist, offensive, or hate language;
- c) your reviews should not contain discriminatory references based on religion, race, gender, national origin, age, marital status, sexual orientation, or disability;
- d) your reviews should not contain references to illegal activity;
- e) you should not be affiliated with competitors if posting negative reviews;
- f) you should not make any conclusions as to the legality of conduct;
- g) you may not post any false or misleading statements; and
- h) you may not organize a campaign encouraging others to post reviews, whether positive or negative.

We may accept, reject, or remove reviews in our sole discretion. We have absolutely no obligation to screen reviews or to delete reviews, even if anyone considers reviews objectionable or inaccurate. Reviews are not endorsed by us, and do not necessarily represent our opinions or the views of any of our affiliates or partners. We do not assume liability for any review or for any claims, liabilities, or losses resulting from any review.

11. Disputes

If you and a vendor or buyer using the Services end up in a dispute arising from your use of the Services, we encourage you to try to resolve the dispute between you professionally and amicably. You release BuyVi from any complaints, claims, actions, or demands arising from such disputes.

If, arising out of your use of the Service, you end up in a dispute with us, such dispute is subject to the following:

- a) The Terms are governed by the laws of British Columbia and any dispute shall be decided by (as applicable) the Supreme Court of British Columbia, the Provincial (Small Claims) Court of British Columbia, or the Civil Resolution Tribunal;
- b) Any claim, action or proceeding against BuyVi must be brought no sooner than thirty (30) days following a demand made to us, in writing via info@buyvi.ca for resolution of your dispute;
- c) BuyVi shall not be liable to any user of the Services for any loss of profits or revenue or business income or for any consequential, indirect, or indirect damages arising from the use of the Services;
- d) If a claim, action or proceeding is brought against BuyVi for an action or inaction by you or your agents, you shall be liable to indemnify BuyVi, its officers, directors, employees, and affiliates for any and all expenses incurred by BuyVi from such claim, action or proceeding (including but not limited to legal fees)

12. Payment Processing

BuyVi shall provide an ecommerce portal for the sale of items in using the Services (the “Portal”) with all payments processed by the ecommerce payment system, “Stripe” (<https://stripe.com/en-ca/connect>). BuyVi, utilizing Stripe, shall provide via the Portal electronic means of payments between vendor and buyer via approved credit cards and debit cards. All funds received from buyers shall be held by Stripe for 14 days prior to being eligible for payout to vendors. All payments made and received through the Portal and processed by Stripe are subject to Stripe’s terms and conditions, which can be found here: <https://stripe.com/en-ca/ssa>

When Vendors purchase memberships from BuyVi.ca, BuyVi pays the transaction fees to Stripe for those membership transactions. When buyers purchase goods from vendors, the vendors pay transaction fees to Stripe for the items purchased by the buyers.

Buyers do not pay fees to Stripe.

Stripe fees are \$0.30 Canadian + 2.9% of each transaction

BuyVi may replace Stripe as its third party ecommerce payment system at any time without notice. BuyVi may group multiple transactions into a single, aggregate transaction on your payment method based on the nature of the charges and/or the date(s) they were incurred. If you do not recognize a transaction, check your receipts/invoice/payment history.

13. Other Legal Terms

Any notice or other writing required or permitted to be given hereunder or for the purposes hereof shall be sufficiently given if delivered or sent to BuyVi at the contact address and information provided below; or, if to the user of the Services, to the contact information they provided when setting up or last amending their account with BuyVi, whichever is later.

These Terms are the entire agreement between you and BuyVi and supersede all previous communications, representations and agreements, whether verbal or written, between you and BuyVi with respect to the subject matter of these Terms.

If any part of these Terms is determined to be void or unenforceable, it shall not affect or impair the validity of any other part of these Terms, which shall continue in full force and effect and be construed as if these Terms had been executed without the void or unenforceable part.

These Terms shall be binding upon the heirs, executors and administrators, and successors of you and BuyVi, who shall do all things necessary for the purpose of carrying out the terms of these Terms as may then be applicable.

You acknowledge and agree that you have been given an opportunity to obtain independent legal advice or such other advice as you may desire concerning the interpretation and effect of these Terms and have obtained such advice or waived your right to do so.

We will alert you about any changes by updating the “Last updated” date of the Terms, and you waive any right to receive specific notice of each such change. Therefore, it is your responsibility to periodically review the Terms to stay informed of updates. You will be subject to, and will be deemed to have been made aware of and to have accepted, the

changes in any revised Terms and Conditions by your continued use of the Site after the date such revised Terms and Conditions are posted.

The information provided on the Site is not intended for distribution to or use by any person or entity in any jurisdiction or country where such distribution or use would be contrary to law or regulation or which would subject us to any registration requirement within such jurisdiction or country.

Accordingly, those persons who choose to access the Site and/or use our Services from other locations do so on their own initiative and are solely responsible for compliance with local laws, if and to the extent local laws are applicable.

BuyVi may assign its rights and obligations, or any of them, under the Terms.

You agree that by your access or use of the Site you consent to receive periodic, regular, or as needed in our discretion, email correspondence from BuyVi. This is necessary to ensure that you can receive emails related to and including but not limited to invoices, receipts, shipping confirmations, notices, and marketing materials. For many concerns about the use of your personal information, please see our privacy policy.

14. Contact Us

Mailing Address:	Telephone(s):	Email:
Unit 205 - 235 Bastion St	1-250-821-1222	info@buyvi.ca
Nanaimo BC, V9R 3A3	1-888-840-122	